REQUEST FOR QUALIFICATIONS

RFQ #: **26-FAC-055**

Title: **On-Call General Contractor Services**

RFQ Issued: 10/28/2026

Question Deadline: 11/05/2026 2:00 PM MT
Questions must be submitted through BidNet. Responses will be posted on BidnetDirect.com via addendum.

Qualifications Due By: **11/17/2026 2:00 PM MT**
Electronic Submissions must be submitted online at BidNetDirect.com.
This is the only valid source for postings regarding this solicitation.
Late responses will not be considered for award.

For additional administrative information not related to the project, contact: Doreen Mazza, dmazza@arvada.org
Contact with the requesting department may result in vendor disqualification.

Arvada Vision: We dream big and deliver.

Mission: We are dedicated to delivering superior services to enhance the lives of everyone in our community.

Values:

Innovation – We excel in creativity, flexibility and the use of best practices while valuing diverse backgrounds, ideas and perspectives.
Passion – We are a high performing, inclusive team inspiring each other to pursue excellence.
Opportunity – We value our diversity, embrace possibilities, face challenges, persevere and take action to deliver quality results.

Documents included in this Request:

Cover Page	page 1
General Terms and Conditions	page 2
Special Terms and Conditions	page 5
Insurance Requirements	page 6
Administrative Instructions and Evaluation Criteria	page 7
Statement of Work	page 9
Required Vendor Submittal Form and Checklist	page 12

GENERAL TERMS AND CONDITIONS

1. **NO MULTI-YEAR FISCAL OBLIGATION.** Financial obligations of Arvada payable after the current fiscal year are contingent on funds for that purpose being appropriated, budgeted, and otherwise made available by the City Council for Arvada. Arvada's obligations under the Agreement shall be from year to year only and shall not constitute a multiple-fiscal year direct or indirect debt or other financial obligation of Arvada within the meaning of Article X, Section 20 of the Colorado Constitution (TABOR).

2. **TAXES.** Arvada shall not be liable for the payment of any excise, sales, or use taxes. Arvada is exempt from federal excise taxes under I.R.C. Chapter 32 (26 U.S.C., Subtitle D, Ch. 32) and from State and local government sales and use taxes under §§39-26-704(1), *et seq.,* C.R.S. (Colorado Sales Tax Exemption Identification Number 98-01789). Contractor shall not invoice Arvada for any state, federal or local taxes. Upon written notification by Arvada, Contractor shall reimburse Arvada in a timely manner for any taxes erroneously paid by Arvada.

3. **NO INDEMNIFICATION BY ARVADA.** Arvada is prohibited under Article XI, Section 1 of the Colorado Constitution from indemnifying anyone. Despite any provision in any contract document to the contrary, Arvada does not indemnify Contractor or anyone else under the Agreement.

4. **INDEMNIFICATION OF ARVADA.** Contractor shall indemnify, defend, and hold harmless Arvada, its employees, agents and assignees (the "Indemnified Parties"), against any and all costs, expenses, claims, damages, liabilities, court awards, and other amounts (including attorneys' fees and related costs) arising from or related to any act or omission by Contractor, or its employees, agents, Subcontractors, or assignees in connection with the Agreement.
   - **4.1. Confidential Information Indemnification.** Disclosure or use of Arvada Confidential Information by Contractor may be cause for legal action by third parties against Contractor, Arvada, or their respective agents. Contractor shall indemnify, defend, and hold harmless the Indemnified Parties, against any and all claims, damages, liabilities, losses, costs, expenses (including attorneys' fees and costs) incurred by Arvada in relation to any act or omission by Contractor, including any unauthorized disclosure of Arvada Confidential Information, or by its employees, agents, assigns, or subcontractors. "Confidential Information" means any and all Arvada Records not subject to disclosure under CORA. Confidential Information includes, but is not limited to, Personally Identifiable Information ("PII"), Protected Health Information ("PHI"), Payment Card Industry data ("PCI"), data related to tax information, Criminal Justice Information ("CJI"), and Arvada personnel records not subject to disclosure under the Colorado Open Records Act (C.R.S. §§24-72-200.1 et seq.)("CORA"). Confidential Information shall not include information or data concerning individuals that is not deemed confidential but nevertheless belongs to Arvada, which has been communicated, furnished, or disclosed by Arvada to Contractor which (i) is subject to disclosure pursuant to CORA; (ii) is already known to Contractor without restrictions at the time of its disclosure to Contractor; (iii) is or subsequently becomes publicly available without breach of any obligation owed by Contractor to Arvada; (iv) is disclosed to Contractor, without confidentiality obligations, by a third party who has the right to disclose such information; or (v) was independently developed without reliance on any Confidential Information. "Arvada Records" means any and all Arvada data, information, and records, regardless of physical form, including, but not limited to, information subject to disclosure under the CORA.
   - **4.2. Intellectual Property Indemnification.** Contractor shall indemnify, save, and hold harmless the Indemnified Parties, against any and all costs, expenses, claims, damages, liabilities, and other amounts (including attorneys' fees and costs) incurred by the Indemnified Parties in relation to any claim that any deliverable, good or service, software, or work provided by Contractor under the Agreement (collectively, "IP Deliverables"), or the use thereof, infringes a patent, copyright, trademark, trade secret, or any other intellectual property right. Contractor's obligations shall not extend to the combination of any IP Deliverables provided by Contractor with any other product, system, or method, unless the other product, system, or method is (a) provided by Contractor or Contractor's subsidiaries or affiliates; (b) specified by Contractor to work with the IP Deliverables; (c) reasonably required in order to use the IP Deliverables in its intended manner and the infringement could not have been avoided by substituting another reasonably available product, system, or method capable of performing the same function; or (d) is reasonably expected to be used in combination with the IP Deliverables.
   - **4.3.** Artificial Intelligence (AI). Contractor shall be fully responsible for all acts and omissions related to its use of any AI functionality to provide the Work. Contractor shall indemnify, save, and hold harmless the Indemnified Parties, against any and all costs, expenses, claims, damages, liabilities, and other amounts (including attorneys' fees and costs) incurred by the Indemnified Parties in relation to any claim arising from Contractor's use of AI functionality to provide the Work.

5. **GOVERNMENTAL IMMUNITY.** Liability for claims for injuries to persons or property arising from the negligence of Arvada, its departments, boards, commissions, committees, bureaus, offices, employees and officials shall be governed by the provisions of the Colorado Governmental Immunity Act, §§24-10-101, et seq., C.R.S. (CGIA). No

term or condition of the Agreement shall be construed or interpreted as a waiver, express or implied, of any of the immunities, rights, benefits, protections, or other provisions contained in the CGIA.

6. **OPEN RECORD REQUESTS.** Arvada is obligated to comply with the Colorado Open Records Act (C.R.S. §§24-72-200.1 *et seq.*)(CORA), which may require Arvada to disclose all or a portion of communications relating to the Agreement, any transaction under the Agreement, and other related matters. Contractor has been advised to familiarize itself with CORA. Any confidentiality provisions in any contract documents are subject to the provisions of CORA.

7. **PROTECTION OF PERSONAL IDENTIFYING INFORMATION.** In the event the Agreement includes or requires Arvada to disclose to Contractor any Personal Identifying Information as defined in C.R.S. § 24-73-101, Contractor shall comply with the applicable requirements of C.R.S. §§ 24-73-101, et seq., relating to third-party service providers.

8. **NO THIRD PARTY BENEFICIARIES.** The Agreement does not and is not intended to confer any rights or remedies upon any person or entity other than Arvada and Contractor. Enforcement of the Agreement and all related rights and obligations are reserved solely to Arvada and Contractor. Any services or benefits which third parties receive as a result of the Agreement are incidental and do not create any rights for such third parties.

9. **ASSIGNMENT**. Contractor's rights and obligations under the Agreement are personal and may not be transferred or assigned without the prior, written consent of Arvada. Any attempt at assignment or transfer without such consent shall be void. Any assignment or transfer of Contractor's rights and obligations approved by Arvada shall be subject to the provisions of the Agreement. Any provision of an assignment that enlarges any duty, responsibility, or obligation of Arvada, or that limits, curtails, or diminishes any right or privilege of Arvada, without Arvada's express written consent, shall be void.

10. **BINDING EFFECT.** This Agreement shall inure to the benefit of, and be binding upon, the parties, their respective legal representatives, successors, heirs, and assigns.

11. **SURVIVAL.** Any provision of the Agreement that imposes an obligation on a party after the Agreement's termination or expiration shall survive the termination or expiration and shall be enforceable by the other party.

12. **SUBCONTRACTS.** Contractor shall not subcontract any of its responsibilities without Arvada's prior written approval, which will not be unreasonably withheld. Contractor shall submit to Arvada a copy of each such subcontract upon Arvada's request. All subcontracts Contractor enters into in connection with the Agreement shall comply with all applicable federal, state, and local laws and regulations, shall provide that they are governed by the laws of the State of Colorado, and shall be subject to all provisions of the Agreement. Contractor agrees it is fully responsible for subcontractors performing services under the Agreement. Contractor shall be Arvada's sole point of contact regarding the services, including with respect to payment.

13. **INDEPENDENT CONTRACTOR.** Contractor shall perform its duties under the Agreement as an independent contractor and not as an employee. Neither Contractor nor any agent or employee of Contractor shall be deemed to be an agent or employee of Arvada. Contractor shall not have authorization, express or implied, to bind Arvada to any agreement, liability, or understanding, except as expressly set forth herein. **Contractor and its employees and agents are not entitled to unemployment insurance or workers compensation benefits through Arvada and Arvada shall not pay for or otherwise provide such coverage for Contractor or any of its agents or employees. Contractor shall pay when due all applicable employment taxes and income taxes and local head taxes incurred pursuant to the Agreement. Contractor shall: (i) provide and keep in force workers' compensation and unemployment compensation insurance in the amounts required by law; (ii) provide proof thereof when requested by Arvada; and (iii) be solely responsible for its acts and those of its employees and agents.**

14. **LICENSES, PERMITS, AND OTHER AUTHORIZATIONS.** Contractor shall secure, prior to the effective date, and maintain at all times during the term of the Agreement, at its sole expense, all licenses, certifications, permits, and other authorizations required to perform its obligations under the Agreement, and shall ensure that all employees, agents and subcontractors secure and maintain at all times during the term of their employment, agency or

subcontract, all license, certifications, permits and other authorizations required to perform their obligations in relation to the Agreement.

15. STANDARD AND MANNER OF PERFORMANCE. Contractor shall perform its obligations under the Agreement in accordance with the highest standards of care, skill, and diligence in Contractor's industry, trade, or profession.

16. TIME OF THE ESSENCE. Contractor acknowledges and agrees that time is of the essence for this Agreement and that it is an essential term of this Agreement that Contractor maintain a rate of progress in the Work that will result in completion of the Work in accordance with this Agreement. To that end, Contractor agrees to proceed with all due diligence to complete the Work in a timely manner in accordance with this Agreement, and further agrees that failure to complete any of the Work during the Term of this Agreement, or as may be more specifically set forth in an attachment, exhibit, or modification, shall be deemed a breach.

17. WAIVER OF BREACH. A waiver by any party to the Agreement of a breach of any Agreement term shall not operate or be construed as a waiver of any subsequent breach by either party.

18. RIGHT TO TERMINATE. Arvada shall have the right to terminate, without cause, the Agreement. Any such termination shall not be considered a breach of the Agreement or any extension. In the event Arvada terminates for convenience, Arvada will pay Contractor for requested work performed up until the time of termination, not to exceed the total amount of the contract price agreed upon by Arvada and Contractor.

19. EXTERNAL TERMS AND CONDITIONS. Notwithstanding anything to the contrary, Arvada shall not be subject to any provision included in any terms, conditions, or agreements appearing on Contractor's or a subcontractor's website or any provision incorporated into any click-through or online agreements related to the Work unless that provision is specifically referenced in the Agreement.

20. PROHIBITED TERMS. Any term included in the Agreement that requires Arvada to indemnify or hold Contractor harmless; requires Arvada to agree to binding arbitration; limits Contractor's liability for damages resulting from death, bodily injury, or damage to tangible property; or that conflicts with this provision in any way shall be void ab initio. Any term included in the Agreement that limits Contractor's liability that is not void under this section shall apply only in excess of any insurance to be maintained under the Agreement, and no insurance policy shall be interpreted as being subject to any limitations of liability of the Agreement.

21. COMPLIANCE WITH ALL LAWS. Contractor shall comply with all applicable federal, Colorado and Arvada laws, rules, regulations, policies and procedures in effect or hereafter established, including, without limitation, laws applicable to discrimination and unfair employment practices.

22. BINDING ARBITRATION PROHIBITED. Arvada does not agree to binding arbitration by any extra-judicial body or person. Any provision to the contrary shall be null and void.

23. GOVERNING LAW AND VENUE. Colorado law, rules, and regulations shall be applied in the interpretation, execution, and enforcement of the Agreement. Any provision included or incorporated herein by reference which conflicts with said laws, rules, and regulations shall be null and void. All suits or actions related to the Agreement shall be filed and proceedings held in the State of Colorado and exclusive venue shall be in Jefferson County.

24. OWNERSHIP OF WORK PRODUCT. The originals of all plans, reports, studies, data, or other materials or information relating to the Work that are produced by Contractor shall be delivered to and become the property of Arvada. Contractor may retain copies of any originals; however, no plans, reports, studies, data, or other materials or information relating to the Work shall be released to any person or entity without the prior written consent of Arvada. Nothing in this clause is intended to affect Contractor's right to use generic know-how learned in the course of providing services under the Agreement for the future benefit of Arvada or others.

25. SOFTWARE PIRACY PROHIBITION. Arvada or other public funds payable under the Agreement shall not be used for the acquisition, operation, or maintenance of computer software in violation of federal copyright laws or applicable licensing restrictions. Contractor hereby certifies and warrants that, during the term of the Agreement and any extensions, Contractor has and shall maintain in place appropriate systems and controls to prevent such

improper use of public funds. If Arvada determines that Contractor is in violation of this provision, Arvada may exercise any remedy available at law or in equity or under the Agreement, including, without limitation, immediate termination of the Agreement and any remedy consistent with federal copyright laws or applicable licensing restrictions.

26. ACCESSIBILITY COMPLIANCE UNDER C.R.S. §24-85-104.

26.1 Contractor shall comply with the accessibility standards for an individual with a disability adopted by the office of information technology pursuant to C.R.S. §24-85-103.

26.2 Contractor shall indemnify, hold harmless, and assume liability on behalf of Arvada, and Arvada's officers, employees, and agents, for all costs, expenses, claims, damages, liabilities, court awards, attorney fees and related costs, and any other amounts incurred by the state agency or public entity in relation to Contractor's noncompliance with the accessibility standards for an individual with a disability adopted by the office of information technology pursuant to C.R.S. §24-85-103.

26.3 Arvada may require that Contractor's compliance with the accessibility standards for an individual with a disability adopted by the office of information technology pursuant to C.R.S. §24-85-103 be determined and attested to by a qualified third party selected by Arvada.

27. ARTIFICIAL INTELLIGENCE (AI) DISCLOSURE & USE. Contractor shall not use any AI functionality while performing the work or providing the goods or deliverables without Arvada's prior written consent. Contractor shall not use, access, or permit access to any Arvada Records for the purpose of training, improving, or refining any AI functionality, regardless of whether the functionality belongs to Contractor or a third-party, without Arvada's prior written consent.

28. PROHIBITED PRICING PRACTICES. Contractor shall not include speculative tariff increases, unsupported contingency amounts, or broad percentage markups labeled as "tariff risk" in any contract document. Any line-item or percentage factor appearing on any document incorporating these terms and conditions must be tied to current, published tariff levels and documented upon request in a manner satisfactory to Arvada.

SPECIAL TERMS AND CONDITIONS

1. TERM OF CONTRACT

The contract shall commence on the date determined in the final negotiated agreement. The Contract may also include the option for contract renewals following the initial one (1) year period, up to four (4) additional one (1) year periods. Continuation of the contract beyond the initial period is a City prerogative and not a right of the vendor. Unless otherwise notified in writing, the option period shall become automatic at the end of the original period. The prices or discounts quoted in this Solicitation shall prevail for one year from the effective date of the contract. During the option period(s), the City may consider an adjustment to pricing. Awarded vendor/s may submit proposed new hourly rates, if applicable, in writing with proper documentation to the City for review and approval. Any approved new rates shall remain in effect for a period of one year. The City reserves the right to accept or reject any/all proposed increases that may apply.

2. CONTENTS OF OFFER

Vendors are required to submit offers with the following conditions:

a. Vendors shall make all investigations necessary to inform themselves of the facilities affected by the delivery of products and services required by the Solicitation.
b. Any official interpretation of the Solicitation may only be issued by an authorized agent of the City. The City shall not be responsible for other interpretations offered by employees not authorized.
c. The City shall issue Addenda if substantial changes are required which may impact the content and submission of Offers. A copy of such addenda will be publicly posted with the original RFQ posting.
d. The apparent silence or omissions within this Solicitation regarding a detailed description of the materials or services shall be interpreted to mean that only the best commercial practices are to prevail and that only materials and workmanship of first quality are to be provided.

3. CLARIFICATION AND MODIFICATIONS

The contract resulting from this solicitation will be subject to the Solicitation materials, City Ordinance, State and Federal Statutes. When conflicts occur, the highest authority shall prevail. Vendors are required to indicate any variances to the terms, conditions, requirements and specifications of this Solicitation; no matter how slight. If variations are not stated in the vendor's Offer, it shall be agreed that the vendor's Offer fully complies with all conditions identified in this Solicitation.

4. CONFIDENTIAL DOCUMENTS

Vendors may designate specific pages or sections within their submission as trade secret or confidential commercial

information or as otherwise protected by law ("Confidential Information"). Documents and data that are considered Confidential Information shall be clearly marked as such and separated from the rest of the solicitation submission documents. Comingling is not acceptable. The City does not favor blanket assertions of Confidential Information. Please note that blanket assertions that merely classify and/or broadly claim information is confidential are insufficient as a matter of law. *See, International Brotherhood of Electrical Workers Local 68 v. Denver Metropolitan Major League Baseball Stadium District,* 880 P.2d 160 (Colo.App. 1994). Any information that will be included in any resulting contract cannot be considered Confidential. Under no circumstances may submission pricing information be considered Confidential. In the event a formal contract is entered into with the City and a portion of the Proposal/Response carries a designation indicating the Vendor believes it is Confidential Information, then the City agrees that it will use its best efforts to forward any request for the disclosure of the Confidential Information to the Vendor. By its submission of the Proposal/Response ,Vendor agrees to promptly respond to the request for disclosure with any objections and reasons therefor in accordance with the Colorado Open Records Act C.R.S. §§24-72-101 *et seq.* and any other applicable law. Further, Vendor agrees to assume the obligation to defend, hold harmless, and indemnify the City in any legal proceeding that arises from non-disclosure of documents or data pursuant to the Vendor's objection.

INSURANCE REQUIREMENTS

The following listed insurance requirements shall be carried by the selected vendor for the entirety of the contract. Applicable requirements for this solicitation are identified by completed check boxes.

1. ☒ **Commercial General Liability**, written on an occurrence form, for limits not less than $1,000,000 for bodily injury and property damage for each occurrence and not less than $2,000,000 aggregate. Coverage shall include premises and operations liability, blanket contractual, broad form property damage, products and completed operations and personal injury endorsements.
2. ☒ **Workers' Compensation and Employers Liability** as required by statute. Employers Liability coverage is to be carried for a minimum limit of $1,000,000 each accident/disease and $2,000,000 aggregate.
3. ☒ **Automobile Liability** for limits not less than $1,000,000 combined single limit for bodily injury and property damage for each occurrence. Coverage shall include owned, non-owned and hired automobiles.
4. ☐ **Umbrella Liability** of $, following form to the Commercial General Liability.
5. ☐ **Builders Risk or Course of Construction** Purchased by contractor to cover physical damage to property in construction or rehab. Contractors will ensure that City and subcontractors will be covered as additional insureds, excluding their own machinery, tools and equipment.
6. ☐ **Professional Liability** Professional Liability insurance in an amount of not less than $1,000,000 per occurrence, covering the professional work contemplated under this proposal. The coverage shall have an extended reporting period of three (3) years following the date of substantial completion of the work for reporting of claims.
7. ☒ **Pollution Legal Liability Insurance** for limits not less than $1,000,000 per occurrence (or claims made) and not less than $1,000,000 aggregate for bodily Injury, personal Injury and property Damage.
8. ☐ **Privacy/Network/Cyber Liability Insurance f**or limits not less than $1,000,000 for any firm providing product or services associated with IT, software, communication, or network.

Additional Insurance Requirements:

- Contractor will be required to, at its own expense, keep in full force and effect during the term of the Agreement, and during the term of any extension or amendment of the Agreement, insurance reasonably sufficient to insure against the liability assumed by Contractor pursuant to the provisions of the solicitation sent by the City of Arvada or as determined by the City of Arvada Risk Manager.
- Issuance of a Purchase Order/Contract is contingent upon the receipt of the insurance documents. Work shall not commence before this requirement is met. If the vendor fails to submit the required insurance documents within fifteen (15) calendar days after notice to submit such policies is given to the vendor by a City representative, the vendor may be in default of the Award.
- Except for Workers Compensation, Employer's Liability insurance, Automobile Liability and Professional Liability insurance, the City of Arvada must be endorsed as an additional insured on a Certificate of Insurance.

- All coverage must be written with carriers holding a minimum A.M. Best rating of A-:VII, and authorized to do business in Colorado. Coverage shall be primary, and any insurance held by the City of Arvada is excess and non-contributory.
- The City, through its Risk Manager, reserves the right to require additional insurance coverage and other requirements.

ADMINISTRATIVE INFORMATION

1. PURPOSE - TO ESTABLISH A CONTRACT

The purpose of this Request for Qualifications is to provide vendors with sufficient information regarding the City's needs in order to establish a contract with the City. RFQ documents must be received by the date and time established in this solicitation. Once the deadline has passed, documents will not be accepted. Submitted documents are proprietary working documents offered by prospective vendors and, as such, are not subject to public inspections until an award is made.

2. PREPARATION AND SUBMISSION

Offers will be prepared as follow:

a. Vendors will not knowingly participate in solicitations where there exists a conflict of interest with their firm and a member of City staff or their immediate family.
b. The only authorized version of this Solicitation and addenda is available at WWW.BIDNETDIRECT.COM. Registration is available to receive email notification of new solicitations, addenda and communications.
c. Vendors who qualify their responses by requiring alternate contractual terms and conditions as a stipulation for contract award, must include such alternate terms and conditions in its Offer. The City reserves the right to declare the vendor's response as non-responsive if any of these alternate terms and conditions are in conflict with the City's terms and conditions, or its best interest.
d. Once responses have been opened, the City shall not consider any subsequent submissions of alternate terms and conditions.

3. REJECTION OF OFFERS

a. The City may reject an offer, in whole or in part, for reasons including, but not be limited to:
   i. The vendor misstates or conceals any material fact in its Proposal;
   ii. The vendor's Offer does not strictly conform to the law or requirements of the Solicitation;
   iii. The Offer expressly requires or implies a conditional award that conflicts with the method of award stipulated in the Special Conditions;
   iv. The Offer does not include documents which are required for submission with the Offer; or
   v. The Offer has not been executed by the vendor through an authorized signature.
b. The City may, at its sole and absolute discretion:
   i. Reject all or parts of Offers submitted by prospective vendors;
   ii. Re-advertise this Solicitation;
   iii. Postpone or cancel the Solicitation;
   iv. An Offer may not be accepted from, nor any contract be awarded to, any person or firm which
      (a) is in arrears to the City for any debt or Contract, or is a defaulter as surety for any obligation to the City.
      (b) has failed to perform faithfully any previous contract with the City, State or Federal governmental for a minimum period of one (1) year after this previous Contract was terminated for cause.
      (c) has pending litigation against the City on the date and time that the Solicitation is due.

4. BEST VALUE AGENCY

The City of Arvada is a best value agency. Best value means a technique in a competitive solicitation process which emphasizes value over price and permits the evaluation of criteria such as, but not limited to, qualifications, experience, and performance data to determine the best overall value to the city. It is solely incumbent on the staff of the City of Arvada to conduct due diligence to determine best value prior to award.

5. METHOD OF AWARD - BEST EVALUATIVE SCORE BASED ON WRITTEN STATEMENT OF QUALIFICATIONS

It is the intent of the City to award a contract to the vendor(s) who receives the highest score of the qualification submittals as reviewed by the City's evaluation committee. From this point, the City will then pursue the negotiation of a final contract that encompasses a general Statement of Work, Fees and other relevant details and requirements. The City reserves the right to award to multiple qualified firms as it is in the best interest of the City.

The Committee will score written Statements of Qualifications by reviewing documentation submitted by the vendors. Evaluation will be based on the following criteria (listed in no particular order):

a. Previous projects completed as the General Contractor for public agency clients (federal, state, county, or municipal) or comparable institutional clients
b. Organizational size, structure and resources

c. Qualifications and location of personnel assigned to execute the services provided; especially experience with similar organization types, size, and plans
d. Overall quality of RFQ Submittal
e. Fees/Rates that support best value for services provided

6. PRESENTATIONS

A second phase MAY be incorporated, in which the Committee will invite a limited number of vendors who received high scores during phase one, to provide an oral presentation. The evaluative score from the oral presentations will determine the top rated vendor(s).

7. STATEMENT OF QUALIFICATIONS FORMAT REQUIREMENTS

Statements of Qualifications should include the information in the format outlined below and be limited to no more than twenty-five (30) pages. Required City forms, resumes, title pages are excluded from page count. Information should be concise, without extraneous content. Refrain from submitting generic marketing materials, alternate and unapproved agreements, and any other information not requested.

All information should be contained in one pdf file, with sections bookmarked. The file name should start with proposer's name, then the proposal number. Imbedded links for required information are NOT acceptable. All information that proposers want evaluated must be contained in the pdf file.

Qualifications submittals shall be organized in the following order and shall include all required documentation. Submittals that are incomplete or not organized as specified may be deemed non-responsive.

7.1 Cover Letter

A cover letter signed by an authorized representative of the firm, including:

- Legal name of firm, address, primary contact information
- Business entity type (corporation, LLC, partnership, sole proprietor)
- Statement of interest and brief overview of the firm's capabilities

7.2 Firm Overview and Organizational Structure

Provide a narrative description of the firm including:

- Year established and history of the firm
- Organizational chart identifying key personnel and their roles
- Firm's primary geographic service area and current operational capacity
- In-house trade capabilities versus typical subcontractor relationships

7.3 Relevant Project Experience

Provide a minimum of five (2) and maximum of ten (10) project references demonstrating relevant experience within the past seven (5) years. For each project, provide the following:

- Project name and location
- Owner/client name, contact name, phone number, and email
- Description of work performed
- Contract value
- Project completion date
- Contractor's role (prime or subcontractor)
- Any relevant certifications or special conditions (prevailing wage, occupied facility, hazmat, etc.

7.4 Licenses and Certifications

Copy of current State Contractor's License(s)
Any specialty certifications relevant to work categories (asbestos, lead, confined space, etc.)

7.5 Subcontractor Information

Provide a list of key subcontractors or subcontractor relationships the firm typically utilizes for trade work not self-performed, including trade discipline and contact information.

SECTION 1: PURPOSE AND BACKGROUND

1.1 Purpose

The City of Arvada is issuing this Request for Qualifications (RFQ) to establish a pre-qualified On-Call General Contractor pool to provide miscellaneous building and property construction, renovation, repair, and maintenance services on an as-needed basis for City-owned and/or City-operated facilities and property.

The City intends to award On-Call Contracts to multiple-qualified contractors. Awarded contractors will be placed on a pre-qualified pool and may be solicited on a competitive basis to submit proposals for specific projects as needs arise throughout the contract term.

1.2 Background

The City of Arvada owns and maintains a diverse portfolio of facilities and properties including, but not limited to:

- Municipal buildings and administrative offices (City Hall, Annex).
- Public safety facilities (Police Community Stations).
- Parks, open spaces, and associated structures
- Parking structures and surface lots.

The City's Facilities Infrastructure Facilities Team is responsible for the upkeep, repair, and improvement of these assets. The volume, diversity, and unpredictable nature of repair and construction needs require a flexible, on-call contractor to ensure timely and cost-effective project delivery.

1.3 Contract Terms

The initial contract term shall be one (1) year from the date of award, with yearly renewal periods, for a maximum potential contract term up to five (5) years, at the City's sole discretion.

This On-Call Contract may range from minor repairs of a few thousand dollars to larger renovation projects. Individual task orders are anticipated to generally not exceed $450,000.00 per year. There is no guaranteed minimum or maximum value of work to be assigned under this contract. The City reserves the right to award or not award any specific project.

SECTION 2: SCOPE OF WORK

2.1 General Description

When a task or project needs arises, the City will issue a Task Order Proposal Request to the eligible pool of on-call contract holders. Contractors awarded an On-Call Contract shall furnish all labor, materials, equipment, tools, supervision, subcontractors, and materials necessary to complete construction, renovation, repair, and maintenance projects at City facilities and properties as directed by the City's authorized Project Manager.

Work shall be performed in a professional, workmanlike manner, in accordance with all applicable federal, state, and local laws, codes, ordinances, and regulations, and consistent with industry best practices and standards.

2.2 Categories of Work

The following is a representative, non-exhaustive list of the types of work that may be requested under this On-Call Contract.

A. General Building Construction and Renovation

- New construction of small structures, accessory buildings, or modular facilities
- Building additions, expansions, and tenant improvements
- Interior and exterior renovation and remodeling
- Demolition of structures and building components

- Site preparation and grading associated with construction projects

B. Carpentry and Millwork

- Framing, rough carpentry, and structural wood repair
- Finish carpentry, trim, cabinetry, and millwork installation
- Door and window repair, replacement, and installation
- Overhead doors and access control integration

C. ADA and Accessibility Improvements

- ADA transition plan project implementation
- Ramp construction, accessible restroom modifications, door hardware upgrades
- Accessible parking and path of travel improvements

D. Site Improvements - Fencing, Gates, Railing, Lighting and Drainage

- Installation, repair, and replacement of chain link, wood, vinyl, and ornamental fencing
- Exterior lighting, ~~paving,~~ and hardscape improvements
- Erosion control and drainage improvements

E. Critical and Urgent Repairs

- Response to critical conditions at City Facilities including storm damage, flooding, fire damage, vandalism, and structural failures
- Temporary protective measures including shoring, boarding, tarping, and fencing

2.3 Performance and Payment Bonds

Performance and Payment Bonds may be required for individual projects at the City's discretion. Bond requirements will be specified in the individual Project solicitation documents. Contractors shall be prepared to furnish bonds from a surety company licensed to do business in the State of Colorado with an A.M. Best rating of A- or better, in amounts as follows:

- Performance Bond: 100% of the task order contract amount
- Payment Bond: 100% of the task order contract amount

Bonds are typically required for task orders exceeding $100,000.00 or for any task order at the City's sole discretion regardless of value.

2.4 Permits and Inspections

The Contractor shall be responsible for obtaining all required permits, licenses, and approvals necessary for the performance of each project, unless otherwise specified. Permit fees will be reimbursed by the City upon submission of receipts or may be pre-arranged by the City on a project-by-project basis. All work shall be subject to inspection by the applicable building department and City staff.

SECTION 3: QUALIFICATIONS

Respondents must demonstrate that they meet all of the following qualifications for placement on the pre-qualified roster.

3.1 Licensing

- Possess and maintain a valid, active General Contractor license issued by the State of Colorado Contractors State License Board throughout the term of the contract.
- Possess all additional trade licenses required to perform the categories of work for which the Contractor is submitting qualifications.
- All key personnel and subcontractors performing licensed trade work must hold current, valid licenses for their respective trades.

3.2 Experience

- Minimum five (5) years of continuous experience as a licensed General Contractor performing work comparable in scope to the services described in this RFQ.
- Demonstrated experience completing at least two (2) projects within the past five (5) years in the category of work being submitted for. Individual project values of $50,000 or greater involving public agency clients (federal, state, county, or municipal) or comparable institutional clients.
- Experience performing work in occupied or partially occupied facilities, including adherence to phasing, noise, dust, and access control requirements.

REQUIRED VENDOR SUBMITTAL FORM

SUBMITTED BY:

Company Name: _____

Contact Names: Sales/Customer Service _____

Address: _____

Phone: (_____) _____ Email(s): _____

The undersigned hereby affirms that:

- They are a duly authorized agent of the vendor;
- They have read all Terms and Conditions and technical specifications made available in conjunction with this solicitation and fully accepts and acknowledges this offer is consistent with the specifications and terms and conditions, unless specific variations have been clearly and expressly listed in the offer.
- The Offer is in all respects fair, without outside collusion or otherwise illegal action.

By:_____ _____ _____
Signature of Authorized Agent Date FEIN

_____ _____ _____
Typed/Printed Name of Agent Title of Agent Agent email

Type of Business: Corporation, State of Incorporation _____ Partnership (general)
Partnership (limited) Sole Proprietorship Limited Liability Company Other _____

Address of main business office, principal factory, or warehouse if different from above:

_____

Principal line of business: _____

Number of years in present business: _____

REFERENCES:

☐ Check here if Firm's standard reference sheet is attached, otherwise, use the space below.

Name: _____ Contact Person: _____

Address: _____

Telephone No: _____ Email: _____

Describe type of work/service performed or items supplied: _____

_____

Name: _____ Contact Person: _____

Address: _____

Telephone No: _____ Email: _____

Describe type of work/service performed or items supplied: _____

_____

References continued:

Name: _____ Contact Person: _____

Address: _____

Telephone No: _____ Email: _____

Describe type of work/service performed or items supplied: _____

_____

PAYMENT TERMS: If the vendor does not accept a percentage discount, the City standard is net thirty (30) days after the date that the City receives an accurate invoice and has accepted the product or service. Payment is the date of the check mailing or date of the credit card transaction.

Discount: ____% ____ Days, Net: 30___ Days, Accept Visa without additional fee? _____

SUBMITTAL CHECKLIST:

Qualifications shall be submitted in the order listed below, unless otherwise directed in Administrative Information, with each section clearly identified. **Missing information or required documents may result in submission being deemed non-responsive.**

- ☐ Submit **one** pdf document on-line at BidnetDirect.com (File Name: Company name – Solicitation number)
- ☐ Statement of Qualification format requirements are stated on page 8 in the Administrative Information Section Number 7 - "*STATEMENT OF QUALIFICATIONS FORMAT REQUIREMENTS*
- ☐ Submit completed, signed Required Vendor Submittal Form, and any other attachments requested.
- ☐ Fees – Submit Rate Sheets including all costs associated with the type of work.

CONFIRM:

- ☐ CONFIDENTIAL information, if any, MUST be stamped as such on each page and submitted separately.
- ☐ VARIATIONS: Checking this box indicates that the vendor has variations to this solicitation. Identify all variations and exceptions to this solicitation on a separate sheet/s of paper. If variations are not stated in the vendor's Offer, it shall be agreed that the vendor's Offer fully complies with all conditions identified in this Solicitation. For each variation listed, reference the applicable section of the solicitation document, the page number, and the variance. Submittal of a Vendor Contract is considered excessive in Variations and may be cause for determining that the Bid/Offer is non-responsive and ineligible for award.
- ☐ Insurance – Checking this box accepts that the insurance requirements listed by the City are acceptable unless listed as a variation.
- ☐ Initial to acknowledge receipt Addenda, if any:

  #1 _____ #2 _____ #3 _____